

From: [Thomas](#)
To: [ostp-ai-rfi](#)
Subject: [External] AI Action Plan
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To whom this may concern,

I write today on behalf of several independent publishers and content creators who are being systematically exploited by artificial intelligence (AI) companies that scrape, repurpose, and monetize our work without consent or compensation. As the federal government charts its course for AI policy, we urge you to recognize the devastating impact of these predatory practices and take immediate steps to ensure fair protections for smaller publishers.

The Unchecked Theft of Content

AI companies have built their large language models (LLMs) by extracting content from across the internet—often without permission, credit, or financial compensation. These models consume the painstakingly researched, written, and published material of independent journalists, bloggers, and niche publishers, only to regurgitate it in AI-generated summaries, responses, and articles. Meanwhile, the original creators see none of the profits reaped by AI firms, nor do they receive traffic or recognition from this usage.

This is nothing short of digital exploitation. The same small publishers who have struggled to sustain themselves in an increasingly challenging media landscape are now watching as AI-driven platforms siphon away their value, all while undercutting their ability to earn a living. AI-generated content, often derived from our original reporting and analysis, is replacing the need for users to visit our websites, further strangling revenue sources. This, in addition, to Google's 2023 HCU update, which left small publishers with little information as to why their sites' traffic was decimated.

AI's Impact on the Free and Diverse Press

A democracy thrives on a free, diverse, and independent press. When small publishers disappear, information ecosystems become monopolized by a handful of corporate giants and AI-generated noise, eroding public discourse. The unregulated scraping of content threatens:

- **The Sustainability of Local Journalism** – Small newsrooms and niche publishers provide vital information to communities, covering issues that larger outlets ignore. If AI companies continue to profit from their labor without returning any value, these publishers will collapse.
- **The Integrity of Information** – AI models aggregate and remix information without critical verification, leading to the spread of misinformation, outdated data, and decontextualized narratives. When AI replaces human editorial oversight, we lose the nuance, accountability, and ethical rigor that real journalism provides.

- **The Rights of Content Creators** – Copyright laws exist to protect creators, yet AI firms have effectively rewritten these rules by scraping content at scale with impunity. The lack of enforcement is setting a dangerous precedent where intellectual property rights are meaningless.

Policy Recommendations for the AI Action Plan

To ensure that AI development respects content creators, we propose the following urgent policy actions:

1. **Mandatory Consent and Opt-Out Mechanisms** – AI companies must obtain explicit permission from content creators before using their work. Websites should have legally enforceable options to block AI scraping.
2. **Compensation for Content Usage** – Just as music streaming services pay royalties to artists, AI firms should be required to compensate publishers whose content is used to train or fuel AI-generated responses.
3. **Transparent AI Training Disclosures** – AI developers must publicly disclose the sources of their training data and make clear which publishers and content repositories have been included.
4. **Regulatory Enforcement and Penalties** – Federal agencies must actively monitor and penalize AI firms that violate copyright protections and engage in mass scraping without authorization.
5. **Protections for Small Publishers in AI Search Integration** – As AI-driven search experiences emerge, government policies should ensure that original publishers are credited and receive traffic from AI-generated summaries.

The promise of AI should not come at the expense of those who create the very content it relies upon. A fair AI ecosystem must be built on ethical data use, transparency, and respect for intellectual property. Without urgent intervention, small publishers will continue to be marginalized, leading to an information landscape dominated by a few powerful entities with little accountability.

I strongly urge OSTP and NITRD to prioritize these issues in the AI Action Plan to prevent further exploitation of small publishers. Thank you for considering these concerns, and I hope the federal government will take action to ensure AI innovation does not trample over independent journalism and creative content.

Sincerely

Thomas Jepsen

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